

Sanjay Kumar vs Smt. Reeta Gautam on 24 May, 2023

Bench: Saumitra Dayal Singh, Rajendra Kumar-Iv

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2023:AHC:115883-DB

Court No. - 42

Case :- FIRST APPEAL No. - 653 of 2023

Appellant :- Sanjay Kumar

Respondent :- Smt. Reeta Gautam

Counsel for Appellant :- Gaurav Sharma

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Shri Gaurav Sharma, learned counsel for the appellant.
2. Present appeal has been filed under Section 19 of the Family Courts Act, 1984 against the order dated 13.4.2023 passed by the Additional Principal Judge, Family Court, Mathura in Matrimonial Case No. 1127 of 2021 (Sanjay Kumar vs Smt. Reeta Gautam).
3. Exercising power under Section 24 of the Hindu Marriage Act, 1955, learned court below has awarded monthly maintenance to respondent (wife of the present appellant) @ Rs. 5,000/- per month as also to three minor daughters of the appellant @ Rs. 2,000/- each, per month, from the date of application filed under Section 24 of the Hindu Marriage Act i.e. with effect from 20.4.2022. Thus, total monthly maintenance allowance @ Rs. 11,000/- per month has been awarded against the appellant with effect from 20.4.2022. Over and above the same, learned court below has awarded Rs. 8,000/- towards legal fee and expense to the respondent.
4. Submission of learned counsel for the appellant is, monthly salary of the appellant is Rs. 39,188/-. Though the appellant is a government servant, he has certain liabilities of loan, etc. Over and above the same, the appellant has made some investment in the nature of recurring deposits for the benefit

of his minor daughters. Further, it has been submitted, in any case, the award of monthly maintenance from the date of application, is excessive.

5. Having heard learned counsel for the appellant and having perused the record, it appears, at present, the appellant has instituted proceedings for dissolution of marriage with respondent. Those are pending before the learned court below. Meanwhile, respondent has claimed lack of means to survive. Accordingly, she has applied for interim maintenance, which has been awarded as noted above. As to the plea being set up by the appellant, we find, the appellant has disclosed two loans availed by him of Rs. 7,35,000/- (Home Loan) and amount Rs. 5,50,000/- of which no detail has been disclosed. The total EMI thus being paid is disclosed at about less than Rs. 20,000/-.

6. Upon query made, learned counsel for the appellant states, the house is in possession of the appellant and not in the possession of his estranged wife. How the appellant may arrange his affairs and how he may chose to spend his salary is not for the Court to dictate. Insofar as the appellant is in the receipt of income Rs. 39,188/- per month and has four dependents namely his wife and three minor daughters, one-fourth of that amount has deservedly been awarded to those dependents. Some money is necessary to be provided in such circumstance to ensure that human dignity and life are preserved. No human-being may survive in the modern times except on the minimal financial support/means.

7. In the context of the present facts, insofar as it is not the case of the appellant that his estranged wife has any other means of income and insofar as the appellant has stable monthly income of Rs. 39,188/-, we find no error in the order passed by the learned court below in awarding one-fourth of that amount for the survival of one-fifth of his family. The fact that the appellant may have any other dependent, may not be enough to convince the Court to deprive his estranged wife and three minor daughters of their fair share in the income of the appellant, that too for their minimum needs to survive.

8. The submission advanced by learned counsel for the appellant that the award should have been made effective from the date of the order is equally misconceived. Minimum amount having been provided, the Court must ensure that the said amount may be delivered to the respondent from the date of her application. How the respondent may have survived against loans or money given out of love and affection in the dire circumstance faced by respondent, may not dis-entitled the respondent to the award of the maintenance from the date of application. No special circumstance or other means available to the respondent have been pleaded or established as may prompt this Court to interfere with the award of the interim maintenance from the date of application.

9. Last, it has been submitted, some time may be granted to the appellant to make good the default. That appears to be reasonable. Accordingly, while no interference is offered on the merits of the appeal, it is provided, subject to the appellant clearing the defaults in payment of interim maintenance for the period April 2022 - April 2023 in three monthly installments beginning 31 July 2023 onwards and further subject to the appellant paying the amount of interim maintenance for the month of May 2023 on or before 31 May 2023 and continuing to pay the monthly maintenance as and when it becomes due and subject to the payment of Rs. 8,000/- awarded by learned court

below on or before 31 July 2023, no coercive measure shall be adopted against the appellant so long as he continues to comply with the terms of this order.

10. Accordingly, the present appeal stands disposed of.

Order Date :- 24.5.2023

Prakhar

(Rajendra Kumar-IV, J.) (S.D. Singh, J.)